



CHAPTER 15.

An Act to provide, during twelve months, for the discipline and regulation of the Army and the Air Force.
[29th April 1942.]

WHEREAS the raising or keeping of a standing army within the United Kingdom in time of peace, unless it be with the consent of Parliament, is against law :

And whereas it is adjudged necessary by His Majesty and this present Parliament that a body of land forces should be continued for the safety of the United Kingdom and the defence of the possessions of His Majesty's Crown, and that the whole number of such forces should consist of such number as His Majesty may deem necessary.

And whereas under the Air Force (Constitution) Act, 1917, 7 & 8 Geo. 5. c. 51. His Majesty is entitled to raise and maintain the air force, and it is judged necessary that the whole number of such force should consist of such number as His Majesty may deem necessary.

And whereas it is also judged necessary for the safety of the United Kingdom and the defence of the possessions of this realm that a body of Royal Marine forces should be employed in His Majesty's fleet and naval service under the direction of the Lord High Admiral of the United Kingdom, or the Commissioners for executing the office of Lord High Admiral aforesaid :

And whereas the said marine forces may frequently be quartered or be on shore, or be sent to do duty or be on board transport ships or vessels, merchant ships or vessels, or other ships or vessels, or they may be under other circumstances in which they will not be subject to the laws relating to the government of His Majesty's forces by sea :

And whereas no man can be forejudged of life or limb, or subjected in time of peace to any kind of punishment within this realm, by martial law, or in any other manner than by the judgment of his peers and according to the known and established laws of this realm; yet, nevertheless, it being requisite, for the retaining all the before-mentioned forces, and other persons subject to military law or to the Air Force Act, in their duty, that an exact discipline be observed and that persons belonging to the said forces who mutiny, or stir up sedition, or desert His Majesty's service, or are guilty of crimes and offences to the prejudice of good order and military or air force discipline, be brought to a more exemplary and speedy punishment than the usual forms of the law will allow:

And whereas the Army Act and the Air Force Act will expire in the year one thousand nine hundred and forty-two on the following days:—

- (a) In Great Britain and Northern Ireland, the Channel Islands, and the Isle of Man, on the thirtieth day of April; and
- (b) Elsewhere, whether within or without His Majesty's dominions, on the thirty-first day of July:

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title.

1. This Act may be cited as the Army and Air Force (Annual) Act, 1942.

Army Act
and Air
Force Act
to be in
force for
specified
times.

2.—(1) The Army Act and the Air Force Act shall be and remain in force during the periods hereinafter mentioned, and no longer, unless otherwise provided by Parliament, that is to say:—

- (a) Within Great Britain and Northern Ireland, the Channel Islands, and the Isle of Man, from the thirtieth day of April, one thousand nine hundred and forty-two, to the thirtieth day of April, one thousand nine hundred and forty-three, both inclusive; and
- (b) Elsewhere, whether within or without His Majesty's dominions, from the thirty-first day of July, one thousand nine hundred and forty-two, to the thirty-first day of July, one thousand nine hundred and forty-three, both inclusive.

(2) Notwithstanding anything in subsection (1) of section fifteen of the Army and Air Force (Annual) Act, 1932, the amendments of the Army Act and of the Air Force Act made by this Act shall come into operation in all places as from the thirtieth day of April, nineteen hundred and forty-two. 22 & 23
Geo. 5. c. 22.

(3) The Army Act and the Air Force Act, while in force, shall apply to persons subject to military law or to the Air Force Act, as the case may be, whether within or without His Majesty's dominions.

AMENDMENTS OF THE ARMY AND AIR FORCE ACTS.

3.—(1) In subsection (1) of section forty-six of the Army Act (which relates to the powers of commanding officers), for the words "field officer" there shall be substituted the word "lieutenant-colonel", and the words "by a general officer or brigadier" shall be omitted. Amendment
of ss. 46, 47
and 137 of
Army Act,
and ss. 47 and
137 of the Air
Force Act.

(2) Section forty-seven of the Army Act (which gives power to deal summarily with charges against officers and warrant officers) shall have effect subject to the following amendments:—

(a) in subsection (1), for the words "field officer" there shall be substituted the word "lieutenant-colonel", and at the end of subsection (1) there shall be added the words—

"Provided that no charge against a field officer shall be dealt with summarily under this section except by a general or air officer authorised to convene a general court-martial";

(b) after the first paragraph (b) of subsection (2), there shall be inserted the following paragraph:—

"(c) Any deduction authorised by this Act to be made from his ordinary pay";

(c) in subsection (5), the words "by a general officer or brigadier" shall be omitted.

(3) After the first paragraph (b) of subsection (2) of section forty-seven of the Air Force Act, there shall be inserted the following paragraph:—

"(c) Any deduction authorised by this Act to be made from his ordinary pay."

(4) At the end of paragraph (2) of section one hundred and thirty-seven of the Army Act and at the end of paragraph (2) of section one hundred and thirty-seven of the Air Force Act (which provide for the stoppage of officers' pay to make good

compensation awarded by a court-martial), there shall be added the words " or by the authority dealing summarily with the charge under section forty-seven of this Act ".

Amendment
of s. 56 and
s. 70 of Army
Act and s. 56
and s. 70 of
Air Force Act.

4.—(1) In subsection (4) of section fifty-six of the Army Act and in subsection (4) of section fifty-six of the Air Force Act (which permit conviction of a less offence on a charge of a greater offence), the words " of desertion or " shall be omitted.

(2) After paragraph (e) of subsection (1) of section seventy of the Army Act (which empowers His Majesty to make rules of procedure), the following paragraph shall be inserted :—

(ee) The substitution by His Majesty or the Army Council of a new finding for any finding of guilty by a court-martial which is invalid or cannot be supported by the evidence, if the new finding could have been validly made by the court-martial on the charge and if it appears that the court-martial must have been satisfied of the facts establishing the offence specified or involved in the new finding, and the imposition of a sentence for the said offence, not being a sentence of greater severity than the sentence imposed by the court-martial " ;

and at the end of the said section the following subsection shall be added :—

" (7) For the purposes of this Act, any finding or sentence substituted in accordance with rules made in pursuance of this section for the finding or sentence of a court-martial, and any sentence imposed for an offence specified or involved in any such substituted finding, shall have effect as if it were a finding or sentence of a court-martial ".

(3) The same amendments shall be made in section seventy of the Air Force Act as are made in section seventy of the Army Act by the last foregoing subsection, subject to the modification that for the words " Army Council " there shall be substituted the words " Air Council ".

Amendment
of s. 138 of
Army Act
and s. 138 of
Air Force Act.

5. In paragraph (1) of section one hundred and thirty-eight of the Army Act and in paragraph (1) of section one hundred and thirty-eight of the Air Force Act (which provide for the stoppage of pay of a soldier or airman, as the case may be, serving a sentence of penal servitude or imprisonment) after the word " ship " there shall be inserted the words " for every day of detention in a Borstal institution awarded by a civil court ".

6. Subsection (3) of section fifteen of the Army and Air Force (Annual) Act, 1932 (which provides that where the Army Act or the Air Force Act has been amended, all subsequent copies of the Act shall be printed with the amendment made therein) shall not apply, and shall be deemed never to have applied—

Suspension of
reprinting of
Army and
Air Force
Acts.

- (a) to any amendment of the Army Act taking effect after the thirtieth day of April, nineteen hundred and forty ;
- (b) to any amendment of the Air Force Act taking effect after the thirtieth day of April, nineteen hundred and thirty-nine.

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